



SPONSOR: Sen. Hansen

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE AMENDMENT NO. 1
TO
SENATE BILL NO. 205

1 AMEND Senate Bill No. 205, on line 3, by deleting "Certificate" as it appears therein and substituting in lieu
2 "Transmission certificate".

3 FURTHER AMEND Senate Bill No. 205, on line 3, by deleting "30" as it appears therein and substituting in lieu
4 thereof "100".

5 FURTHER AMEND Senate Bill No. 205, on line 4, by deleting "30" as it appears therein and substituting in lieu
6 thereof "100".

7 FURTHER AMEND Senate Bill No. 205, on line 5, by inserting "transmission" after "Commission a" and before
8 "certificate".

9 FURTHER AMEND Senate Bill No. 205, on line 6, after "utility" by inserting "currently".

10 FURTHER AMEND Senate Bill No. 205, on line 7, by deleting "30" as it appears therein and substituting in lieu
11 thereof "100".

12 FURTHER AMEND Senate Bill No. 205, on line 20, after "authority to" by inserting ", in addition to
13 requirements from the electric distribution company".

14 FURTHER AMEND Senate Bill No. 205 by deleting lines 27 through 31 in their entirety and inserting in lieu
15 thereof the following:

16 "(d) In determining whether to grant the COP, the Commission shall consider:

17 (1) Whether PJM Interconnection, L.L.C. (or its successor) ("PJM") has completed relevant studies regarding
18 energy and capacity supply to serve the relevant transmission zone where the facility would be constructed and operated.
19 The Commission shall only grant a COP for facilities that will interconnect into the local distribution grid whether directly
20 or through an electric distribution company.".

21 FURTHER AMEND Senate Bill No. 205, on line 40, after "renewable" by inserting "and baseload".

22 FURTHER AMEND Senate Bill No. 205, on line 43, after "renewable" by inserting "and baseload".

23 FURTHER AMEND Senate Bill No. 205, on line 46, after "public" by inserting ", including the supply of water
24 locally and the state water supply in general".

SYNOPSIS

This is an amendment to Senate Bill No. 205. The amendment is designed to accomplish the following:

- 1) Clarify that the particular Certificate to Operate in the bill is intended to relate to the transmission of electricity.
- 2) The electricity level of projects subject to the bill is increased from a minimum of 30 megawatts to 100 megawatts.
- 3) Clarify that, in addition to meeting the Public Service Commission's requirements to issue a Certificate to Operate, the operator must also meet the requirements of the electric distribution company.
- 4) That in determining whether to grant a Certificate to Operate, the Commission must consider whether PJM Interconnection, L.L.C. has completed relevant studies regarding energy and capacity supply to serve the relevant transmission zone where the facility would be constructed and operated.
- 5) Clarify that lines 40-45 of Senate Bill No. 205 are not intended to restrict future energy projects solely to those which use renewable energy.
- 6) In determining whether to grant a Certificate to Operate, the Commission must consider the impact on local and state water supplies.

Author: Senator Hansen